

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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EMMANUEL OSARIO,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
TAYLOR CORCORAN, Shield No. 5130, POLICE
OFFICER STEVE TORRES, POLICE OFFICER FRANK
INGRAO, POLICE OFFICER ZACHARY
CHARDAVOYNE, Shield No. 11355, SERGEANT
JAMES MCSHERRY, Shield No. 3934, and POLICE
OFFICERS JOHN DOES #s 1-10, (names and numbers of
whom are unknown at present),

Defendants.

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SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Kings
County as the place of trial.

To the above-named Defendants:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the verified complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the verified complaint.

DATED: New York, New York
April 15, 2021

Yours, etc.

/s/
JACOBS & HAZAN, PLLC.
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007,
POLICE OFFICER TAYLOR CORCORAN, Shield No. 5130, 75TH Pct., 1000 Sutter Ave,
Brooklyn, Ny 11208
POLICE OFFICER STEVE TORRES, 75TH Pct., 1000 Sutter Ave, Brooklyn, Ny 11208
POLICE OFFICER FRANK INGRAO, 75th Pct., 1000 Sutter Ave, Brooklyn, Ny 11208
POLICE OFFICER ZACHARY CHARDAVOYNE, Shield No. 11355, 75th Pct., 1000 Sutter
Ave, Brooklyn, Ny 11208
SERGEANT JAMES MCSHERRY, Shield No. 3934, 75th Pct., 1000 Sutter Ave, Brooklyn, Ny
11208

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

EMMANUEL OSARIO,

Plaintiff,

INDEX NO.:**VERIFIED COMPLAINT**

-against-

THE CITY OF NEW YORK, POLICE OFFICER
TAYLOR CORCORAN, Shield No. 5130, POLICE
OFFICER STEVE TORRES, POLICE OFFICER FRANK
INGRAO, POLICE OFFICER ZACHARY
CHARDAVOYNE, Shield No. 11355, SERGEANT
JAMES MCSHERRY, Shield No. 3934, and POLICE
OFFICERS JOHN DOES #s 1-10, (names and numbers of
whom are unknown at present),

JURY TRIAL DEMANDED

Defendants.

----- X

Plaintiff EMMANUEL OSARIO, by his attorneys, Jacobs & Hazan, PLLC, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. The claims arise from an incident that occurred on or about November 27, 2019, at approximately 10:00 p.m. Plaintiff was lawfully present inside of his home located at 71 Milford Street, Brooklyn, New York when defendants unlawfully entered and searched plaintiff's home without a warrant or any legal justification, unlawfully searched plaintiff, falsely arrested plaintiff, assaulted and battered plaintiff, subjected plaintiff to the use of excessive force, denied plaintiff the right to due process and maliciously prosecuted plaintiff, without probable cause or any legal justification. Plaintiff was unlawfully detained for approximately 24 hours before he was arraigned in Kings County Criminal Court on November 28, 2019 and charged with felony crimes without probable cause based upon the defendants' false, misleading, and incomplete allegations against plaintiff. Plaintiff was remanded into DOC custody where he was unlawfully detained for approximately 1 week before he was able to post bail and was released from custody. All charges brought against plaintiff were dismissed in their entirety on January 16, 2020 after the Kings County District Attorney's Office affirmatively moved to dismiss the charges. The defendants who did not

physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights are liable to plaintiff for their failure to intervene. Plaintiff was deprived of his constitutional and common law rights when the individual defendants falsely arrested, falsely imprisoned, unlawfully searched, assaulted, battered, subjected plaintiff to the use of excessive force, maliciously prosecuted, and denied plaintiff the right to due process/ right to a fair trial in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

PARTIES

2. Plaintiff EMMANUEL OSARIO is a resident of the state of New York.

3. Defendant POLICE OFFICER TAYLOR CORCORAN, Shield No. 5130, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. Defendant POLICE OFFICER TAYLOR CORCORAN, Shield No. 5130, is and was at all times relevant herein, assigned to the 75th Precinct.

5. Defendant POLICE OFFICER TAYLOR CORCORAN, Shield No. 5130, is being sued in his individual and official capacity.

6. Defendant POLICE OFFICER STEVE TORRES, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. Defendant POLICE OFFICER STEVE TORRES, was at all times relevant herein, assigned to the 75th Precinct.

8. Defendant POLICE OFFICER STEVE TORRES, is being sued in his individual and official capacity.

9. Defendant POLICE OFFICER FRANK INGRAO, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. Defendant POLICE OFFICER FRANK INGRAO, was at all times relevant herein, assigned to the 75th Precinct.

11. Defendant POLICE OFFICER FRANK INGRAO, is being sued in his individual and official capacity.

12. Defendant POLICE OFFICER ZACHARY CHARDAVOYNE, Shield No. 11355, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. Defendant POLICE OFFICER ZACHARY CHARDAVOYNE, Shield No. 11355, was at all times relevant herein, assigned to the 75th Precinct.

14. Defendant POLICE OFFICER ZACHARY CHARDAVOYNE, Shield No. 11355, is being sued in his individual and official capacity.

15. Defendant SERGEANT JAMES MCSHERRY, Shield No. 3934, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

16. Defendant SERGEANT JAMES MCSHERRY, Shield No. 3934, was at all times relevant herein, assigned to the 75th Precinct.

17. Defendant SERGEANT JAMES MCSHERRY, Shield No. 3934, is being sued in his individual and official capacity

18. Defendants New York City Police Officers John Does #s 1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

19. Defendants Police Officers John Does #s 1-10 are being sued in their individual and official capacities.

20. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees, and agents of the New York City Police Department.

21. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

22. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a Notice of Claim with the CITY OF NEW YORK and also attended a 50-h Hearing on May 19, 2020 in compliance with the Municipal Law Section 50.

23. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

24. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

25. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

26. On November 27, 2019 shortly before 10:00 PM plaintiff was lawfully walking home from a store when he observed several individuals fighting with each other in the vicinity of plaintiff's.

27. At no time relevant herein did plaintiff interact with the individuals that were fighting home, and plaintiff ran into his home located at 71 Milford Street, Brooklyn, New York 11208 for his safety.

28. After plaintiff entered his home, his family members heard the people who were fighting behind their home and a member of plaintiff's household called 911 and reported the incident.

29. Defendants responded to plaintiff's home and banged loudly on plaintiff's front door without identifying themselves as police officers which caused plaintiff's family to fear for their safety because they were concerned that the individuals who were fighting might be banging on their front door.

30. , Plaintiff looked to see who was banging on the front door of his home at which point the officers forcefully and unlawfully entered plaintiff's home without a warrant, consent, or any legal justification.

31. Defendants unlawfully entered plaintiff's home without consent or any legal basis and searched the entire home, including closets and bedrooms that plaintiff did not sleep in or use.

32. At approximately 10:00 PM on November 27, 2019 the defendants unlawfully handcuffed plaintiff and unlawfully searched plaintiff's home without probable cause or legal justification.

33. . The defendants assaulted and battered plaintiff and subjected him to the use of excessive force when they physically dragged plaintiff out of his home and across the ground to a location 2 homes away from plaintiff's home.

34. The assault, battery, and excessive force used by the defendants against plaintiff caused plaintiff to suffer injuries to his knees and also throughout his entire body.

35. Plaintiff was falsely arrested and unlawfully handcuffed without probable cause or legal justification.

36. At no time relevant herein, was plaintiff identified as an individual who engaged in criminal activity.

37. All of the individuals that were accused of physically assaulting an individual in the vicinity of plaintiff's home were unapprehended.

38. The defendants were informed that members of plaintiff's household called 911 to request police assistance to report the fight and they were not involved in the fight.

39. At no time relevant herein was plaintiff placed in a line-up or properly identified by another individual as having violated the law.

40. At no time relevant herein did the defendants recover any illegal drugs, illegal weapons, or illegal contraband from plaintiff's person, or from a location that was within plaintiff's possession, custody, or control.

41. At no time relevant herein did defendants possess an objective basis to reasonably believe plaintiff committed a crime or violated the law in any way and they lacked probable cause to arrest plaintiff.

42. At no time relevant herein did plaintiff commit a crime or violate the law in any way.

43. Defendants lacked probable cause or any legal justification to arrest plaintiff and/or charge him with a crime.

44. Nevertheless, defendants falsely arrested/ imprisoned plaintiff and transported him to the 75th Precinct against his will.

45. Defendants conducted an unlawful search of plaintiff's person at the 75th Precinct, without probable cause or legal justification.

46. Defendants did not recover any illegal drugs, weapons, or contraband from plaintiff pursuant to the unlawful search of plaintiff's person.

47. Defendants unlawfully fingerprinted, photographed, interrogated, and detained plaintiff in a filthy holding cell at the 75th Precinct.

48. Plaintiff was transported against his will to Central Booking where he was unlawfully detained for approximately 24 hours before he was arraigned in Kings County Criminal Court and charged with crimes he did not commit and that the defendants lacked probable cause to accuse him of committing.

49. The individually named defendant police officers initiated a criminal prosecution against plaintiff, without probable cause by (a) telling the Kings County District Attorney's Office false, incomplete, and misleading information regarding the basis for their arrest of plaintiff and (b) by signing a sworn Criminal Court Complaint which contained false, misleading, and incomplete allegations against plaintiff

50. The defendant officers provided the DA's Office with false, misleading, and incomplete evidence regarding whether plaintiff committed a crime and failed to provide any facts or evidence in support of their allegations that plaintiff acted in concert with the "unapprehended others" who allegedly committed felony crimes.

51. Plaintiff was arraigned on November 28, 2019 and charged with felony crimes he did not commit because he allegedly "acted in concert" with the unapprehended individuals.

52. No specific allegations were made against plaintiff regarding actions he took to allegedly engage in criminal activity and the only allegation made against plaintiff was the conclusory allegation that he "acted in concert" with unapprehended others.

53. At arraignment plaintiff was remanded into DOC custody and detained on Riker's Island at the RNDC facility where he was unlawfully detained for 6 days until he was able to post bail and was released from custody.

54. Plaintiff was required to pay a fee to a bail bonds company in order to post bail and get released from custody.

55. After the District Attorney's Office reviewed the evidence in the case, it was clear that they possessed zero evidence to support allegations that plaintiff committed a crime and the District Attorney's Office affirmatively moved to dismiss all charges brought against plaintiff

56. . All criminal charges were dismissed and sealed in their entirety on January 16, 2020.

57. The defendants provided the Kings County District Attorney's Office with false, misleading, and incomplete information and evidence regarding the officers' purported basis for arresting and prosecuting plaintiff

58. Plaintiff was maliciously prosecuted and denied the right to due process/right to a fair trial by the defendants and all charges terminated in plaintiff's favor and were dismissed and sealed on January 16, 2020 after the District Attorney's Office affirmatively moved to dismiss the charges.

59. Those defendant police officers that did not physically touch or interact with plaintiff but observed their fellow officers violating plaintiff's rights and failed to prevent

and/or stop their fellow officers from violating plaintiff's rights are liable to plaintiff for their failure to intervene.

60. At no time relevant herein did plaintiff violate the law or commit a crime, nor did the defendants have probable cause to believe he violated the law or committed a crime.

61. The false arrest, false imprisonment, unlawful search, assault, battery, excessive force, malicious prosecution, and denial of due process/ right to a fair trial of plaintiff by the individually named defendants caused plaintiff to sustain physical, economic, psychological, and emotional trauma.

62. Plaintiff was fired from his job as a building maintenance man because he was arrested. Plaintiff has not been able to secure new employment since this incident and he continues to suffer from lost income as the proximate cause of being falsely arrested by the defendants.

63. Plaintiff was deprived of his constitutional and common law rights when the individual defendants falsely arrested, falsely imprisoned, unlawfully searched, assaulted, battered, subjected plaintiff to the use of excessive force, maliciously prosecuted, and denied plaintiff the right to due process/ right to a fair trial in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment, and Fourteenth Amendment Rights

64. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 63 with the same force and effect as if more fully set forth at length herein.

65. The individually named police officer defendants while acting in concert and within the scope of their authority, unlawfully entered and searched plaintiff's home and caused plaintiff to be unlawfully seized, unlawfully stopped, questioned, frisked, searched, falsely arrested, falsely imprisoned, maliciously prosecuted, and denied the right to due process/ right to a fair trial without probable cause in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

66. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 65 with the same force and effect as if more fully set forth at length herein.

67. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

68. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

69. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

70. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

71. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

72. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 71 with the same force and effect as if more fully set forth at length herein.

73. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

74. The conduct of defendants in stopping, frisking, and searching, plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

75. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

76. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

77. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

78. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.\

FOURTH CAUSE OF ACTION

Unlawful Search

79. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 78 with the same force and effect as if more fully set forth at length herein.

80. The illegal search inside plaintiff's pockets, inside of the waistband of his pants and underneath his clothing employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

81. Defendants lacked probable cause to search plaintiff.

82. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

83. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

84. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

85. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION**Malicious Prosecution**

86. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 85 with the same force and effect as if more fully set forth at length herein.

87. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York and the United States Constitution.

88. Defendants commenced and continued a criminal proceeding against plaintiff.

89. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

90. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

91. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

92. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.\

93. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

94. The City of New York, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

95. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

Excessive Force

96. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 95 with the same force and effect as if more fully set forth at length herein.

97. The use of excessive force by defendants by grabbing plaintiff and dragging him out of his home and across pavement over a significant distance caused plaintiff to suffer serious physical injuries and was an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

98. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for his conduct.

99. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological, and economic injuries.

SEVENTH CAUSE OF ACTION

Violation of Plaintiff's Fifth Amendment Right to Due Process/ Right to a Fair Trial

100. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 99 with the same force and effect as if fully set forth herein.

101. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

102. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

103. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

104. In withholding/creating false evidence against plaintiff and in providing/withholding information with respect thereto, defendants violated plaintiff's

constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

105. As a result of the foregoing, plaintiff, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation and deprivation of his constitutional rights.

106. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

107. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

EIGHTH CAUSE OF ACTION

Failure to Intervene

108. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 107 with the same force and effect as if more fully set forth at length herein.

109. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

110. Defendants failed to intervene to prevent the unlawful conduct described herein.

111. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

112. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

113. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

NINTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

114. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 113 with the same force and effect as if more fully set forth at length herein.

115. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train, and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

TENTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

116. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 115 with the same force and effect as if more fully set forth at length herein.

117. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

118. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.

119. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

JURY DEMAND

120. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff EMMANUEL OSARIO demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages, costs, and reasonable attorneys' fees inclusive of costs and disbursements of this action, interest, and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
April 15, 2021

By: /s/
DAVID M. HAZAN
JACOBS & HAZAN, PLLC
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
April 15, 2021

/s/

DAVID M. HAZAN